

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

MOTION FOR CONFIDENTIAL TREATMENT

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) moves pursuant to 46 C.F.R. §§ 502.5(b), 502.69, and 502.141(j)(1) for the confidential treatment of the non-public version of Complainant’s Motion for Summary Decision, Statement of Undisputed Material Facts (“SUMF”), and Appendix documents.

On June 9, 2021, the Presiding Officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality (“Order”), which provides for the confidential treatment of certain materials in this proceeding.

Pursuant to the foregoing and the Initial Order in this proceeding, IMCC respectfully requests confidential treatment for portions of the Motion for Summary Decision and the SUMF and continued confidential treatment for certain documents in the Appendix exhibits that have

been designated as Confidential or Confidential Outside Counsel Eyes Only (“OCEO”) by IMCC or non-parties pursuant to the Order in the following categories:

1. Deposition transcript excerpts for non-party motor carriers Evans Delivery, Dave Manning, ContainerPort Group, Reliable Transportation, Intermodal Cartage, Ability Tri-Modal, TCW and non-party Intermodal Equipment Provider (“IEP”) North American Chassis Pool Cooperative – In response to non-party subpoenas served by Respondents, these non-parties were deposed, during which their corporate witnesses testified regarding commercially- and competitively-sensitive information, the public disclosure of which would damage these non-parties’ commercial interests.
2. The expert reports of Dr. James Langenfeld and Dr. Jean-Paul Rodrigue and exhibits thereto – These expert reports submitted on behalf of IMCC contain extensive analyses and discussion of both Respondent and non-party documents designated as Confidential or Confidential OCEO under the Order and that contain commercially- and competitively-sensitive or otherwise non-public information.
3. Declaration of Randall J. Clifford (Ventura) and Affidavits of Glenn Fehribach (ContainerPort Group), Mark George (Intermodal Cartage), and Scott George (TCW) – This declaration and these affidavits describe non-party motor carriers’ operations and costs and the impact of the lack of interoperability and chassis choice. The affidavits are based on underlying data and documents that have been designated Confidential or Confidential OCEO under the Order. The public disclosure of this confidential commercial information would damage these non-parties’ commercial interests.

4. Non-party motor carrier agreements with IEPs, operational and billing data, and related correspondence – In response to subpoenas from Respondents, non-party motor carriers produced copies of agreements with IEPs, operational and billing data, and related correspondence all of which were designated as Confidential or Confidential OCEO under the Order. These agreements contain the financial and other terms of the relationship between these non-party motor carriers and non-party IEPs. Similarly, the data and correspondence contain non-public financial and operation data for these non-parties. The public disclosure of this confidential commercial information would damage these non-parties' commercial interests.

In addition, IMCC seeks continuing confidential treatment for Appendix exhibits that are documents produced and designated by Respondents as Confidential or Confidential OCEO pursuant to the Order, including (1) deposition transcript excerpts; (2) expert reports; (3) contracts between Intermodal Equipment Providers ("IEPs") and ocean carriers or between IEPs and motor carriers for the sale and/or provision of chassis; (4) non-public business, financial, research and marketing data; (5) internal emails and memos; (6) presentations; and (7) correspondence regarding contractual negotiations and business strategies.

Pursuant to Rule 502.5(b), IMCC is providing with this Motion the confidential version of its Motion for Summary Decision, the SUMF, and Appendix. Exhibit A to this Motion is a table listing the Bates numbers of each exhibit and indicating in the "Confidential" column whether it has been designated Confidential or Confidential OCEO. Information IMCC seeks permission to redact in the public version of the Motion for Summary Decision and SUMF is highlighted, including images.

Respectfully submitted,

DATED: April 29, 2022

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Exhibit A

Description	Date	BegBates	EndBates	Confidential	CX Prodbeg	CX Prodend
Deposition Transcript of Anthony Micena, Yang Ming Marine 143(b)(6) [Excerpts]	1/21/2022	N/A	N/A	CONFIDENTIAL	CX00000001	CX00000185
Deposition Transcript of Chris Giltz, Evans Delivery 143(b)(6) [Excerpts]	12/21/2021	N/A	N/A	CONFIDENTIAL	CX00000186	CX00000206
Deposition Transcript of Dan Compton, HMM 143(b)(6) [Excerpts]	11/17/2021	N/A	N/A	CONFIDENTIAL	CX00000207	CX00000246
Deposition Transcript of Dave Manning [Excerpts]	11/23/2021	N/A	N/A	CONFIDENTIAL	CX00000247	CX00000259
Deposition Transcript of Dennis Messing, ZIM Integrated Shipping Services 143(b)(6) [Excerpts]	11/16/2021	N/A	N/A	CONFIDENTIAL	CX00000260	CX00000303
Deposition Transcript of Eric Chung, WAN HAI 143(b)(6) [Excerpts]	1/20/2022	N/A	N/A	CONFIDENTIAL	CX00000304	CX00000328
Deposition Transcript of Glenn Fehribach, ContainerPort Group 143(b)(6) [Excerpts]	1/28/2022	N/A	N/A	CONFIDENTIAL	CX00000329	CX00000336
Deposition Transcript of James Houghtalin, COSCO Shipping Lines 143(b)(6) [Excerpts]	12/17/2021	N/A	N/A	CONFIDENTIAL	CX00000337	CX00000447
Deposition Transcript of Jeffrey Lawrence [Excerpts]	1/31/2022	N/A	N/A	CONFIDENTIAL	CX00000448	CX00000458
Deposition Transcript of Ken Tock [Excerpts]	9/22/2021	N/A	N/A	CONFIDENTIAL	CX00000459	CX00000476
Deposition Transcript of Kevin Lhotak, Reliable Transportation Specialists 143(b)(6) [Excerpts]	12/15/2021	N/A	N/A	CONFIDENTIAL	CX00000477	CX00000489
Deposition Transcript of Michael Wilson, Consolidated Chassis Management 143(b)(6) [Excerpts]	9/20/2021	N/A	N/A	CONFIDENTIAL	CX00000490	CX00000529
Deposition Transcript of Mike Kelso, Ability Tri-Modal 143(b)(6) [Excerpts]	1/18/2022	N/A	N/A	CONFIDENTIAL	CX00000530	CX00000533
Deposition Transcript of Robert Basila, CMA 143(b)(6) [Excerpts]	1/14/2022	N/A	N/A	CONFIDENTIAL	CX00000534	CX00000543
Deposition Transcript of Ronald Armstrong [Excerpts]	10/6/2021	N/A	N/A	CONFIDENTIAL	CX00000544	CX00000605
Deposition Transcript of Ronald Armstrong, ONE 143(b)(6) [Excerpts]	10/28/2021	N/A	N/A	CONFIDENTIAL	CX00000606	CX00000639
Deposition Transcript of Scott George, TCW & NACPC 143(b)(6) [Excerpts]	1/11/2022	N/A	N/A	CONFIDENTIAL	CX00000640	CX00000653
Deposition Transcript of Thomas Barattini [Excerpts]	10/1/2021	N/A	N/A	CONFIDENTIAL	CX00000654	CX00000694
Deposition Transcript of Thomas Barattini, Hapag Lloyd 143(b)(6) [Excerpts]	10/22/2021	N/A	N/A	CONFIDENTIAL	CX00000695	CX00000708
Deposition Transcript of Thomas Weisberg, Maersk A/S 143(b)(6) [Excerpts]	11/19/2021	N/A	N/A	CONFIDENTIAL	CX00000709	CX00000772
Deposition Transcript of Tom Wang, Evergreen Line Joint Service Agreement 143(b)(6) [Excerpts]	11/3/2021	N/A	N/A	CONFIDENTIAL	CX00000773	CX00000798
Deposition Transcript of Vincenzo Roveccio, MSC 143(b)(6) [Excerpts]	12/3/2021	N/A	N/A	CONFIDENTIAL	CX00000799	CX00000870
Deposition Transcript of Douglass Coates (Respondents Expert) [Excerpts]	3/29/2022	N/A	N/A	CONFIDENTIAL	CX00000871	CX00000915
Deposition Transcript of William Fentress, CMA 143(b)(6)	1/14/2022	N/A	N/A	CONFIDENTIAL	CX00000916	CX00001265
Initial Expert Report of Dr. James Langenfeld (Complainant Expert)	2/28/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001266	CX00001361
Initial Expert Report of Dr. Jean-Paul Rodrigue (Complainant Expert)	2/28/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001362	CX00001523

Exhibit A

Initial Expert Report of MICP Capital Inc. (Respondents Experts)	2/28/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001524	CX00001564
Rebuttal Expert Report of Dr. James Langenfeld (Complainant Expert)	3/18/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001565	CX00001605
Rebuttal Expert Report of Dr. Jean-Paul Rodrigue (Complainant Expert)	3/18/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001606	CX00001624
Rebuttal Expert Report of Dr. James Reitzes (Respondents Expert)	3/18/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001625	CX00001687
Rebuttal Expert Report of MICP Capital Inc. (Respondents Expert)	3/18/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00001688	CX00001699
Declaration of Ronald E. Joseph (DCLI)	2/22/2022	N/A	N/A		CX00001700	CX00001701
Declaration of Val Noel (Trac Intermodal)	2/11/2022	N/A	N/A		CX00001702	CX00001703
Declaration of Nathaniel Seeds (Flexi-Van)	2/15/2022	N/A	N/A		CX00001704	CX00001705
Declaration of Randall J. Clifford (Ventura)	2/23/2022	N/A	N/A	CONFIDENTIAL	CX00001706	CX00001708
Affidavit of Glenn Fehribach (CPG)	4/25/2022	N/A	N/A	CONFIDENTIAL	CX00001709	CX00001711
Affidavit of Mark George (IMC Companies)	4/25/2022	N/A	N/A	CONFIDENTIAL	CX00001712	CX00001714
Affidavit of Scott George (TCW)	4/25/2022	N/A	N/A	CONFIDENTIAL	CX00001715	CX00001716
OCEMA Agreement FMC Agreement No. 011284-083	9/9/2020	N/A	N/A		CX00001717	CX00001744
Consolidated Chassis Management Pool Agreement FMC Agreement No. 011962-018	1/30/2021	N/A	N/A		CX00001745	CX00001777
"History of APL Limited", FundingUniverse, http://www.fundinguniverse.com/company-histories/apl-limited-history/ (last visited Feb. 28, 2022)	4/6/2006	N/A	N/A		CX00001778	CX00001779
"Composition of the Global Fleet of Containers", 2012, Port Economics, Management and Policy, https://porteconomicsmanagement.org/pemp/contents/part8/containers-and-ports/composition-global-fleetcontainers/ (last visited Feb. 28, 2022).	2012	N/A	NA		CX00001780	CX00001782
CPCS Transcom, InterPro Advisory, Prime Focus and Jean-Paul Rodrigue, Guidebook for Assessing Evolving International Container Chassis Supply Models (2012)	2012	N/A	N/A		CX00001783	CX00001885
CALSTART, Key Performance Parameters for Drayage Trucks Operating at the Ports of Los Angeles and Long Beach (Nov 15, 2013), https://calstart.org/wp-content/uploads/2018/10/I-710-Project_Key-Performance-Parameters-for-Drayage-Trucks.pdf	11/15/2013	N/A	N/A		CX00001886	CX00001919
Average Length of Haul, Domestic Passenger and Freight Transport, United States, 1960-2016, THE GEOGRAPHY OF TRANSPORT SYSTEMS, https://transportgeography.org/contents/chapter5/transportation-modes-modal-competition-modal-shift/length-haul-passengers-united-states/	2016	N/A	N/A		CX00001920	CX00001922
CCM, Frequently Asked Questions – General Subject Matters (Sept. 22, 2017), https://www.ccmpool.com/UploadedDocuments/Frequently-Asked-Questions-9-22-17.pdf	9/22/2017	N/A	N/A		CX00001923	CX00001925

Exhibit A

Ari Ashe, US drayage rates rise as length of haul shrinks, The Journal of Commerce (July 19, 2019), https://www.joc.com/trucking-logistics/drayage/us-drayage-rates-rise-length-haul-shrinks_20190719.html	7/19/2019	N/A	N/A		CX00001926	CX00001934
"Difficult solutions to US chassis chaos emerge," Journal of Commerce, February 6, 2019, https://www.joc.com/port-news/port-equipment/difficult-solutions-us-chassis-chaos-emerge_20190206.html	2/6/2019	N/A	N/A		CX00001935	CX00001947
Cassidy, William B., "More than cost drives shipper haulage strategies," Journal of Commerce, March 6, 2019, https://www.joc.com/maritime-news/international-freight-shipping/more-cost-drives-shipper-haulagestrategies_20190306.html	3/6/2019	N/A	N/A		CX00001948	CX00001956
Ari Ashe, DCLI exiting NVO business to deal directly with truckers, THE JOURNAL OF COMMERCE (Oct. 6, 2020), https://www.joc.com/trucking-logistics/trucking-equipment/direct-chassislink-inc/dcli-exiting-nvobusiness-deal-directly-truckers_20201006.html	10/6/2020	N/A	N/A		CX00001957	CX00001965
Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government's Oversight Role, pp. 3-4, 10-12.	3/8/2021	N/A	N/A		CX00001966	CX00001982
Miller, Greg, "Global demand isn't booming. So why are shipping rates this high?" American Shipper, August 6, 2021, https://www.freightwaves.com/news/global-demand-isnt-booming-so-why-are-shipping-rates-this-high	8/6/2021	N/A	N/A		CX00001983	CX00001989
Pool of Pools, About Us, https://web.archive.org/web/20200820222149/http://www.pop-lalb.com/	2022	N/A	N/A		CX00001990	CX00001991
CCM, Choice Program, https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx	2022	N/A	N/A		CX00001992	CX00001994
Decision of Surface Transportation Board in North American Chassis Pool Cooperative, LLC—Pooling Application	1/22/2013	N/A	N/A		CX00001995	CX00001999
Respondent CCM Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002000	CX00002012
Respondent CMA-CGM Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002013	CX00002024
Respondent COSCO Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002025	CX00002037
Respondent Evergreen Objections and Answers to Interrogatorie	6/14/2021	N/A	N/A		CX00002038	CX00002051
Respondent Hapag-Lloyd Objections and Answers to Interrogatories	6/14/2021	N/A	N/A		CX00002052	CX00002064
Respondent HMM Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002065	CX00002076
Respondent Maersk Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002077	CX00002088
Respondent MSC Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002089	CX00002100
Respondent OCEMA Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002101	CX00002112
Respondent ONE Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002113	CX00002124

Exhibit A

Respondent Wan Hai Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002125	CX00002135
Respondent Yang Ming Objections and Answers to Interrogatorie	6/14/2021	N/A	N/A		CX00002136	CX00002147
Respondent ZIM Objections and Answers to Interrogatorie:	6/14/2021	N/A	N/A		CX00002148	CX00002159
The Chassis "Choice" Dilemma"CCM presentation	12/2018	CCM0000993	CCM00001002	CONFIDENTIAL	CX00002160	CX00002169
CCM Pools Operations Manual version 2.9	4/1/2019	CCM0000190	CCM00000240	CONFIDENTIAL-OCEO	CX00002170	CX00002220
Interoperability Matters! Presentation	12/19/2019	CCM0001025	CCM0001036		CX00002221	CX00002232
Letter from Michael Wilson to Emily Pahon re: CCM Notice of Termination of (GCCP/COCP) Chassis Use and Contribution Agreements	5/21/2020	CCM0001329	CCM0001329	CONFIDENTIAL-OCEO	CX00002233	CX00002233
Email from Mike Wilson to Anny Fine (CCM) forwarding the slides for the December 12, 2019 meeting	12/5/2019	CCM0035908	CCM0035908	CONFIDENTIAL-OCEO	CX00002234	CX00002234
Presentation on economic and industry overview attached to email from Mike Wilson to Anny Fine (CCM) for the December 12, 2019 meeting	12/5/2019	CCM0035909	CCM0035909	CONFIDENTIAL-OCEO	CX00002235	CX00002252
Email from Jeffrey Lawrence to Mike Wilson and Frank Grossi re: NACPC and some random strategic thoughts	1/31/2019	CCM0036672	CCM0036674		CX00002253	CX00002255
Email chain, top email from Vincenzo Roveccio to Mike Wilson re: DCLI letter re: choice	7/10/2019	CCM0038390	CCM0038392	CONFIDENTIAL-OCEO	CX00002256	CX00002258
CCE Board Meeting Presentation	2/19/2020	CCM0040189	CCM0040265	CONFIDENTIAL-OCEO	CX00002259	CX00002334
Email chain, top email from Mike Wilson to Thomas Engel (Hapag Lloyd) re: CCE Board of Directors Meeting attaching CCE Board Meeting presentation	1/28/2021	CCM0041156	CCM0041200	CONFIDENTIAL-OCEO	CX00002335	CX00002378
CCM Pools Operations Manual version 4.0	10/1/2019	CCM0042005	CCM0042055	CONFIDENTIAL-OCEO	CX00002379	CX00002429
Email chain, top email from Mike Wilson to Frank Grossi (COSCO) and Jeffrey Lawrence (OCEMA) re: MSC in Memphis	6/25/2019	CCM0046004	CCM0046006	CONFIDENTIAL-OCEO	CX00002430	CX00002432
Email chain between Jon Poelma, Mike Wilson, and Ken Tock re: DCLI HMM conversion	4/2/2019	CCM0057168	CCM0057170	CONFIDENTIAL-OCEO	CX00002433	CX00002435
Email from Mike Wilson to Tom Martucci, Ken Tock, and Timothy Sibley re: Choice Document Discussion	11/20/2019	CCM0058649	CCM0058654	CONFIDENTIAL-OCEO	CX00002436	CX00002440
CCE Board Meeting Presentation	5/7/2019	CCM0074660	CCM0074660	CONFIDENTIAL-OCEO	CX00002441	CX00002456
Email exchange between Tony Micena and Ken Tock re: ATS Trucking - SACP	12/7/2018	CCM0078048	CCM0078049	CONFIDENTIAL-OCEO	CX00002457	CX00002458
Email chain top email from Keisha Wallace Bryan to James Ford-Hutchinson and Ken Tock re: single chassis provider - Hapag Lloyd	7/12/2018	CCM0082113	CCM0082113	CONFIDENTIAL-OCEO	CX00002459	CX00002462
Email chain top email Thomas Barattini to Keisha Wallace Bryant re: Hapag Lloyd chassis provider	8/3/2016	CCM0093420	CCM0093424	CONFIDENTIAL-OCEO	CX00002463	CX00002467
Email chain, top email from Keisha Wallace Bryant to Jeff Kabella with attachment re: BCO's using choice for ONE line in SACP	6/2/2020	CCM0099726	CCM0099738	CONFIDENTIAL-OCEO	CX00002468	CX00002481
DCLI Open Choice Process presentation to CCM	6/8/2016	CCM0110091	CCM0110091	CONFIDENTIAL-OCEO	CX00002482	CX00002487
Email chain top email from Jon Poelma to Ken Tock re: OCEMA Input Requested for SoCal Ports Annual Chassis Meeting	3/6/2018	CCM0114650	CCM0114652	CONFIDENTIAL-OCEO	CX00002488	CX00002490
Email chain between Dan Compton and Jeffrey Lawerence re: HMM leaving the CCM pools	3/27/2019	CCM0131581	CCM0131584	CONFIDENTIAL-OCEO	CX00002491	CX00002494

Exhibit A

Email exchange between Ken Tock and Trey Gibbons (MAT Holdings) re: ocean carriers and CCM pools	12/20/2016	CCM0141074	CCM0141076	CONFIDENTIAL-OCEO	CX00002495	CX00002497
CCM Board Meeting September 23, 2016 native presentator	9/23/2016	CCM0141574	CCM0141574	CONFIDENTIAL-OCEO	CX00002498	CX00002509
CCM Board Meeting May 18	5/18/2016	CCM0152239	CCM0152240	CONFIDENTIAL-OCEO	CX00002510	CX00002511
Email exchange between Ken Tock and Dave Manning re: Yang Ming	8/25/2015	CCM0153240	CCM0153240	CONFIDENTIAL-OCEO	CX00002512	CX00002512
Email from John Allen to Robert Basila re: CMA Oakland proposal 1.20.2021	1/20/2021	CMA0000199	CMA0000206	CONFIDENTIAL-OCEO	CX00002513	CX00002520
Amendment to Amended and Restated Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	3/1/2021	CMA0000211	CMA0000222	CONFIDENTIAL-OCEO	CX00002521	CX00002532
Email from Robert Basila to James Bowe re: LA chassis supply	12/7/2020	CMA0000413	CMA0000415	CONFIDENTIAL-OCEO	CX00002533	CX00002535
Amended and Restated Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	12/3/2019	CMA0000599	CMA0000634	CONFIDENTIAL-OCEO	CX00002536	CX00002571
Email from John Allen to Robert Basila re: Bay Area chassis poo	1/26/2021	CMA0000949	CMA0000952	CONFIDENTIAL-OCEO	CX00002572	CX00002575
Meeting invite from John Allen to Robert Basila re: Flexi cost model	1/19/2021	CMA0002998	CMA0002998	CONFIDENTIAL-OCEO	CX00002576	CX00002576
Email from John Allen to Robert Basila re: master usage filk	1/18/2021	CMA0002999	CMA0002999	CONFIDENTIAL-OCEO	CX00002577	CX00002578
Master usage file spreadsheet attachment to email from John Allen to Robert Basila	1/18/2021	CMA0003000	CMA0003000	CONFIDENTIAL-OCEO	CX00002579	CX00002579
Email from William Fentress to Gregory Evans re: chassis provisioning	3/17/2021	CMA0003003	CMA0003004	CONFIDENTIAL-OCEO	CX00002580	CX00002581
Amendment to the Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	12/1/2017	CMA0006026	CMA0006029	CONFIDENTIAL-OCEO	CX00002582	CX00002585
Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	1/1/2017	CMA0006030	CMA0006064	CONFIDENTIAL-OCEO	CX00002586	CX00002620
Email chain between Brian Doyle, James Michalski, John Bell and Alan Schmidt of Trac Intermodal re: CMA-CGM transition to TGRP June 1 approval	5/11/2016	CMA0009122	CMA0009129	CONFIDENTIAL-OCEO	CX00002621	CX00002628
Email from Joel Gentil to Timothy Haas, Frederick Girel, and Robert Basila re: TRAC lease negotiation	9/3/2019	CMA0009854	CMA0009870	CONFIDENTIAL-OCEO	CX00002629	CX00002642
Email from John Bell to Robert Cannizzaro and William Fentress re: TRAC 3.28.2019 executive summary	3/25/2019	CMA0011173	CMA0011183	CONFIDENTIAL-OCEO	CX00002643	CX00002653
Email from Robert Basila to Timothy Haas, Ludovic Renou, Ed Aldridge, and Chris Fricker	9/16/2019	CMA0011535	CMA0011544	CONFIDENTIAL-OCEO	CX00002654	CX00002663
Email from Timonthy Haas to Gregory Evans re: chassis renewal and strategy June 2019	12/9/2019	CMA0011951	CMA0011970	CONFIDENTIAL-OCEO	CX00002664	CX00002683
Email from Alan Schmid to CMA team re: CMA/APL - choice process review	11/18/2007	CMA0012322	CMA0012323	CONFIDENTIAL-OCEO	CX00002684	CX00002685
Email from Brian Doyle to James Michalski and Ed McCarthy re: TRAC CMA RFP	10/30/2015	CMA0012739	CMA0012761	CONFIDENTIAL-OCEO	CX00002686	CX00002708
Email from Timonthy Haas to Robert Basila re: DCLI revised proposal	8/20/2019	CMA0014523	CMA0014526	CONFIDENTIAL-OCEO	CX00002709	CX00002712

Exhibit A

Email from Gregory Evans to Chris Fricker re: Memphis chassis analysis	3/11/2020	CMA0014626	CMA0014643	CONFIDENTIAL-OCEO	CX00002713	CX00002730
Email from William Fentress to Alan Schmid and James Bowe	12/12/2019	CMA0014654	CMA0014654	CONFIDENTIAL-OCEO	CX00002731	CX00002731
Email from John Mizerek to Robert Basila re: Flexivan rate indication	8/19/2019	CMA0014745	CMA0014748	CONFIDENTIAL-OCEO	CX00002732	CX00002735
Email from Brian Doyle to James Michalski and Ed McCarthy re: DCLI Response to CMA	10/31/2015	CMA0015636	CMA0015645	CONFIDENTIAL-OCEO	CX00002736	CX00002745
Email from Brian Doyle to James Michalski, John McKenzie, and John Bell re: chassis proposal cost evaluation	11/5/2015	CMA0015646	CMA0015648	CONFIDENTIAL-OCEO	CX00002746	CX00002748
Email chain top email re: CMA-CGM carrier chassis notices	2/27/2018	CMA0015708	CMA0015712	CONFIDENTIAL-OCEO	CX00002749	CX00002753
Email from Phillip Wolfe to Timothy Haas and Robert Cannizzaro re: DCLI revised proposal	5/3/2019	CMA0015775	CMA0015777	CONFIDENTIAL-OCEO	CX00002754	CX00002756
Preferred Pricing Agreement between DCLI and ContainerPort Group	4/29/2020	ContainerPort Group_0000004	ContainerPort Group_0000005	CONFIDENTIAL-OCEO	CX00002757	CX00002758
Supplement #4 to Master Agreement between DCLI and ContainerPort Group	5/26/2021	ContainerPort Group_00000095	ContainerPort Group_00000099	CONFIDENTIAL-OCEO	CX00002759	CX00002763
ContainerPort Group 2019 chassis invoices spreadsheet	2019	ContainerPort Group_00000110	ContainerPort Group_00000110	CONFIDENTIAL-OCEO	CX00002764	CX00002764
Email chain, top email from Alan Schmid (TRAC Intermodal) to Jennifer Rioux and Dennis Maaser re: ContainerPort Group national agreement/targeted discount	5/22/2018	ContainerPort Group_00000041	ContainerPort Group_00000045	CONFIDENTIAL-OCEO	CX00002765	CX00002769
Summary of the billing reconciliation spreadsheet, 2020	2020	ContainerPort Group_0000111	ContainerPort Group_0000111	CONFIDENTIAL-OCEO	CX00002770	CX00002779
2017 Chicago billing codes spreadsheet from ContainerPort Group	2017	ContainerPort Group_00071475	ContainerPort Group_00071475	CONFIDENTIAL-OCEO	CX00002780	CX00002780
2020 Chicago billing codes spreadsheet from ContainerPort Group	2020	ContainerPort Group_00071479	ContainerPort Group_00071479	CONFIDENTIAL-OCEO	CX00002781	CX00002781
Equipment User Agreement for Chassis Pool Chassis between TRAC Intermodal and COSCO SHIPPING Lines	7/1/2018	CSC0000017	CSC0000030	CONFIDENTIAL-OCEO	CX00002782	CX00002795
Chassis User Agreement between Direct ChassisLink and COSCO SHIPPING Lines	7/1/2018	CSC0000031	CSC0000047	CONFIDENTIAL-OCEO	CX00002796	CX00002812
Amendment to Equipment User Agreement between TRAC Intermodal and COSCO SHIPPING Lines	4/1/2020	CSC0000055	CSC0000059	CONFIDENTIAL-OCEO	CX00002813	CX00002817
COSCO SHIPPING Lines Chassis Provider Request for Proposal	1/24/2018	CSC0000065	CSC0000072	CONFIDENTIAL-OCEO	CX00002818	CX00002825
Flexivan Revised Bid Proposal to COSCO SHIPPING Lines National Chassis RFP	2/15/2018	CSC0000074	CSC0000080	CONFIDENTIAL-OCEO	CX00002826	CX00002832
TRAC Proposal Response to COSCO SHIPPING Lines RFP	3/23/2018	CSC0000091	CSC0000103	CONFIDENTIAL-OCEO	CX00002833	CX00002845
Email from COSCO's Frank Grossi to COSCO employees	12/6/2018	CSC0001974	CSC0001974	CONFIDENTIAL-OCEO	CX00002846	CX00002846
Email from Paul Nazzaro to Frank Grossi re: DCLI and COSCO	2/13/2019	CSC0003080	CSC0003083	CONFIDENTIAL-OCEO	CX00002847	CX00002850
COSCO CCM Pool Exit Plan presentation by DCLI	2/2019	CSC0003106	CSC0003122	CONFIDENTIAL-OCEO	CX00002851	CX00002867
Amendment 1 to Chassis User Agreement between NACPC and COSCO Container Lines Co.	7/1/2016	CSC0004812	CSC0004813	CONFIDENTIAL-OCEO	CX00002868	CX00002869
Email from Eric Witsman to Linda Li re: study for chassis and DRF	11/6/2018	CSC0005703	CSC0005707	CONFIDENTIAL-OCEO	CX00002870	CX00002885

Exhibit A

Email from James Houghtalin to Paul Nazzaro re: 2018 chassis usage discussions	8/14/2018	CSC0006314	CSC0006462	CONFIDENTIAL-OCEO	CX00002886	CX00003035
Attachment data spreadsheet with COSCO and OES incentive estimates	8/14/2018	CSC0006463	CSC0006463	CONFIDENTIAL-OCEO	CX00003036	CX00003036
Email from James Houghtalin to Paul Nazzaro re: COSCO NEW SERVICE IN TAMPA	1/22/2019	CSC0006947	CSC0006947	CONFIDENTIAL-OCEO	CX00003037	CX00003037
BNSF Contract MA111 International Transportation Contract with COSCO	4/1/2019	CSC0007543	CSC0007543	CONFIDENTIAL-OCEO	CX00003038	CX00003047
CN Confidential Transportation Agreement No. 660882-AE between COSCO and Canadian National Railway Company	2/28/2021	CSC0007580	CSC0007613	CONFIDENTIAL-OCEO	CX00003048	CX00003081
Norfolk Southern Railway Company Intermodal Transportation Agreement with COSCO	8/1/2019	CSC0007782	CSC0007816	CONFIDENTIAL-OCEO	CX00003082	CX00003116
Data spreadsheet with COSCO start stop list	12/7/2021	CSC0007837	CSC0007837	CONFIDENTIAL-OCEO	CX00003117	CX00003120
Equipment User Agreement for Chassis Pool Chassis between TRAC Intermodal and COSCO Container Lines Co.	5/1/2016	CSC0007838	CSC0007859	CONFIDENTIAL-OCEO	CX00003121	CX00003142
Equipment User Agreement for Chassis Pool Chassis between TRAC Intermodal and COSCO SHIPPING Lines	7/1/2021	CSC0007892	CSC0007903	CONFIDENTIAL-OCEO	CX00003143	CX00003154
Evans Delivery Chassis Reports (EvansDelivery_ChassisJan2017.xls - EvansDelivery_ChassisDec2020.xls)	2017-2020	Evans Delivery_00001186	Evans Delivery_00001237	CONFIDENTIAL-OCEO	CX00003155	CX00003206
Daily rate charged to Evans Delivery for chassis January 2019-October 2019	2019	Evans Delivery_00001240	Evans Delivery_00001240	CONFIDENTIAL-OCEO	CX00003207	CX00003207
Daily rate charged to Evans Delivery for chassis	2019	Evans Delivery_00001338	Evans Delivery_00001338	CONFIDENTIAL-OCEO	CX00003208	CX00003219
Email from Alan Schmid to Chris Giltz re: Evans - Agreement Amendments / "Agreed" Response	4/8/2020	Evans Delivery_00118412	Evans Delivery_00118417	CONFIDENTIAL-OCEO	CX00003220	CX00003225
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Evergreen Marine (CORP) TAIWAN LTD.	12/1/2017	EVG0000038	EVG0000060	CONFIDENTIAL-OCEO	CX00003226	CX00003248
Email chain top email from Tom Wang to Charles Yeh re: Evergreen proposal for Evergreen Minneapolis Neutral Pool	2/10/2015	EVG0000566	EVG0000576	CONFIDENTIAL-OCEO	CX00003249	CX00003259
Email from Ross Pignaz to Tom Wang re: APMT usage analysis	4/2/2015	EVG0000596	EVG0000640	CONFIDENTIAL-OCEO	CX00003260	CX00003305
Attachment data spreadsheet with IEP chassis ownership statistic	4/2/2015	EVG0000641	EVG0000641	CONFIDENTIAL-OCEO	CX00003306	CX00003306
Email chain, top email from Tom Wang to Robert L.T. Tan, et. al at Evergreen re: TRAC proposal to Evergreen Metro Pool NY NJ Baltimore and Philadelphia, August 3, 2015	8/21/2015	EVG0001566	EVG0001610	CONFIDENTIAL-OCEO	CX00003307	CX00003351
Email from Tom Wang to Robert L.T. Tan re: chassis market analysis in US attaching DCLI and TRAC proposals	3/2/2016	EVG0001958	EVG0002035	CONFIDENTIAL-OCEO	CX00003352	CX00003429
Email from Tom Wang to Charles Yeh re: memo to CCE Board on CCM Pool status	3/3/2016	EVG0002070	EVG0002075	CONFIDENTIAL-OCEO	CX00003430	CX00003435
Email from Tom Wang to Leanne Chiu re: requests EGA'S comments and inputs on material presentation to Management	6/2/2016	EVG0003582	EVG0003611	CONFIDENTIAL-OCEO	CX00003436	CX00003465
Email from Mary O'Neil to David Chen, Charles Yeh, Abraham Tsai, and Tom Wang re: Evergreen TRAC purchase and usage proposal for LA/Long Beach	9/10/2016	EVG0007479	EVG0007490	CONFIDENTIAL-OCEO	CX00003466	CX00003477

Exhibit A

Email from Tom Wang to Leanne Chiu re: responses to Evergreen TRAC purchase and usage proposal for LA/Long Beach	9/15/2016	EVG0007504	EVG0007529	CONFIDENTIAL-OCEO	CX00003478	CX00003505
Email from Robert L.T. Tan to Tom Wang re: preliminary analysis on TRAC/DCLI offeres to Evergreen's own chassis at LAX	11/1/2016	EVG0007581	EVG0007605	CONFIDENTIAL-OCEO	CX00003506	CX00003531
Equipment User Agreement for Marine Chassis Pools between TRAC International and Evergreen Line	11/28/2016	EVG0008315	EVG0008332	CONFIDENTIAL-OCEO	CX00003532	CX00003549
Chassis Purchase and Sale Agreement between TRAC Intermodal and Evergreen Shipping Agency (America)	11/28/2016	EVG0008333	EVG0008421	CONFIDENTIAL-OCEO	CX00003550	CX00003638
Chassis Purchase and Sale Agreement between Trac Intermodal and Evergreen Shipping Agency (America) Corp.	12/1/2017	EVG0014518	EVG0014525	CONFIDENTIAL-OCEO	CX00003639	CX00003646
Internal Evergreen email chain, top email from Bruce Lo to Rick Wang, Alan Liu, Willow Liu, and Charles Yeh re: progress update on the sale of EGA chassis in CCM pools	5/10/2019	EVG0020450	EVG0020455	CONFIDENTIAL-OCEO	CX00003647	CX00003651
Email from Bruce Lo to Rick H.P. Wang re: final SSC meeting 5-9-2019	5/22/2019	EVG0020701	EVG0020756	CONFIDENTIAL-OCEO	CX00003652	CX00003707
Email from Tom Wang to Bruce Lo re: Progress update on the sale of EGA chassis in CCM pools	7/1/2019	EVG0021319	EVG0021365	CONFIDENTIAL-OCEO	CX00003708	CX00003753
Chassis Use Agreement EMC between Direct ChassisLink and Evergreen Line Joint Service Agreement	10/22/2019	EVG0021998	EVG0022022	CONFIDENTIAL-OCEO	CX00003754	CX00003778
Email chain, top email from Philip Wolfe to Tom Wang re: DCLI CCM pool chassis provision options	2/11/2021	EVG0025582	EVG0025586	CONFIDENTIAL-OCEO	CX00003779	CX00003783
Chassis Use Agreement between Direct ChassisLink and Evergreer Shipping Agency (America)	10/22/2019	EVG0026451	EVG0026475	CONFIDENTIAL-OCEO	CX00003784	CX00003808
Evergreen recommendation memorandum re: DCLI as IEP at CCM pool areas	6/26/2019	EVG0028702	EVG0028705	CONFIDENTIAL-OCEO	CX00003809	CX00003812
Letter of Authority for Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals with Evergreen	6/20/2020	EVG0028707	EVG0028708	CONFIDENTIAL-OCEO	CX00003813	CX00003814
Amendment # 1 to Chassis Use Agreement EMC between Direct ChassisLink and Evergreen Line Joint Service Agreement	10/22/2019	EVG0028736	EVG0028742	CONFIDENTIAL-OCEO	CX00003815	CX00003821
BNSF Railway Company International Transportation Agreement with Evergreen America Corp.	11/01/2005	EVG0028770	EVG0028776	CONFIDENTIAL-OCEO	CX00003822	CX00003828
Union Pacific Railroad Company Exempt Rail Transportation Agreement with Evergreen America Corp.	5/01/2005	EVG0028864	EVG0028877	CONFIDENTIAL-OCEO	CX00003829	CX00003842
TRAC Intermodal, Flexi-Van, and DCLI published daily rate:	2020	EVG0028881	EVG0028893	CONFIDENTIAL-OCEO	CX00003843	CX00003855
Letter from Flexi-Van Leasing and DCLI to Department of Justice, Antitrust Division re: request for business review	1/22/2014	FlexiVan_0000025	FlexiVan_0000025	CONFIDENTIAL	CX00003856	CX00003892
Hapag-Lloyd Position Paper re: contract with TRAC Intermodal for chassis	2018	HLAG0000123	HLAG0000123	CONFIDENTIAL-OCEO	CX00003893	CX00003893
Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	10/1/2018	HLAG0000198	HLAG0000209	CONFIDENTIAL-OCEO	CX00003894	CX00003905
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Hapag-Lloyd (America)	1/1/2019	HLAG0000260	HLAG0000301	CONFIDENTIAL-OCEO	CX00003906	CX00003947

Exhibit A

GCCP Chassis Pool User Agreement between Flexi-Van Leasing and Hapag-Lloyd AG	1/1/2013	HLAG0000663	HLAG0000673	CONFIDENTIAL-OCEO	CX00003948	CX00003958
Email string between Thomas Barattini and David Wilson re: NACPC Intermodal Factbook: An Introduction to Intermodal Freight Transportation	10/4/2018	HLAG0003072	HLAG0003073		CX00003959	CX00003960
Chassis Purchase Agreement between Direct ChassisLink and Hapag Lloyd AG	2017	HLAG0003518	HLAG0003549	CONFIDENTIAL	CX00003961	CX00003992
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Halag Lloyd (America) [Barattini Dep. Ex. 7]	11/28/2012	HLAG0004145	HLAG0004161	CONFIDENTIAL-OCEO	CX00003993	CX00004009
Chassis Purchase and Sale Agreement between TRAC Intermodal and Hapag Lloyd AG	11/28/2012	HLAG0004314	HLAG0004326	CONFIDENTIAL-OCEO	CX00004036	CX00004048
Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	12/21/2012	HLAG0004401	HLAG0004411	CONFIDENTIAL-OCEO	CX00004049	CX00004059
Email from Thomas Barattini to Sharon Jelen, Douglas Whyte, and Phillip Summers re: Tenders	10/26/2012	HLAG0016615	HLAG0016638	CONFIDENTIAL-OCEO	CX00004060	CX00004083
Email chain between Thomas Barattini, Janet Sim, Phillip Summers, and Shan Elias re: HLCU revenue analysis	12/11/2017	HLAG0023962	HLAG0023962	CONFIDENTIAL	CX00004084	CX00004085
Amendment #1 to Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	10/13/2017	HLAG0024590	HLAG0024592	CONFIDENTIAL-OCEO	CX00004086	CX00004088
Amendment to Equipment User Agreement between TRAC Intermodal and Hapag-Lloyd (America)	1/1/2017	HLAG0025112	HLAG0025120	CONFIDENTIAL-OCEO	CX00004089	CX00004097
TRAC Proposal for current agreement/term revision, COCP transition to TMEP, and TPSP/PoP usage inclusion for Hapag-Lloyd	8/16/2016	HLAG0025349	HLAG0025351	CONFIDENTIAL-OCEO	CX00004098	CX00004100
Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	1/1/2016	HLAG0028707	HLAG0028720	CONFIDENTIAL-OCEO	CX00004101	CX00004114
Amendment to Equipment User Agreement between TRAC Intermodal and Hapag-Lloyd (America)	1/1/2017	HLAG0029061	HLAG0029097	CONFIDENTIAL-OCEO	CX00004115	CX00004151
Norfolk Southern Railway Company Intermodal Transportation Agreement with Hapag-Lloyd AG (Barattini Dep Ex. 34)	7/1/2022	HLAG0029187	HLAG0029225	CONFIDENTIAL	CX00004152	CX00004190
Chassis Use Agreement between Direct ChassisLink and HMM and 11/3/2017 Letter from Jae Lee to Danny Jeong re: Revised Contract Proposal	11/30/2017	HMM00000001	HMM00000017	CONFIDENTIAL-OCEO	CX00004191	CX00004207
Equipment User Agreement between TRAC Intermodal and HMM	1/1/2020	HMM00000018	HMM00000021	CONFIDENTIAL-OCEO	CX00004208	CX00004211
DCLI Letter to HMM re: chassis use agreement	3/19/2019	HMM00000038	HMM00000041	CONFIDENTIAL-OCEO	CX00004212	CX00004215
Email chain, top email Dan Compton to Mark H George re: Chassis Provisioning whereas Hyundai does not provide chassis- Exercising CHOICE	12/13/2018	HMM00000831	HMM00000834	CONFIDENTIAL-OCEO	CX00004216	CX00004219
Email chain, top email from Jae Lee to Dan Compton re: HMM requesting open choice approval for several shippers	11/20/2018	HMM00000851	HMM00000853	CONFIDENTIAL-OCEO	CX00004220	CX00004222
Email chain with attachment DCLI Letter Open Choice Nov 30 2017, top email Daewon Kim to Dan Compton and Byeongsu Kang Re: RE: Memo re IMCC Letter (Compton Dep Ex. 15)	5/12/2020	HMM00000986	HMM00000989	CONFIDENTIAL-OCEO	CX00004223	CX00004226

Exhibit A

Email from Daewon Kim to Junseoki Choi, Seunghoon Lee, Eugene Lee, Yuen Ji, and Min Kim re: ramp operations wheeled or grounded, attaching ramp operations spreadsheet		HMM0001956	HMM0001971	CONFIDENTIAL-OCEO	CX00004227	CX00004242
Email exchange between Dan Compton and Theresa Norris re: CCM Request	11/5/2018	HMM0003286	HMM0003287	CONFIDENTIAL-OCEO	CX00004243	CX00004244
Email chain, top email from Daewon Kim to James Ford-Hutchinson, TinaShin, Pat Lau re: Chassis Open choice	6/16/2020	HMM0003306	HMM0003327	CONFIDENTIAL-OCEO	CX00004245	CX00004266
Email exchange Tina Shin to Jason Seong, Keisha Wallace Bryant re: Chassis	5/30/2019	HMM0003328	HMM0003331	CONFIDENTIAL-OCEO	CX00004267	CX00004270
Email chain, top email from Tina Shin to Jon Parise, Dan Compton re: NACPC as preferred chassis provider	7 /9/2019	HMM0003340	HMM0003341	CONFIDENTIAL-OCEO	CX00004271	CX00004272
Email chain, top email from Tina Shin to Zineta Neighbors (Steam Logistics) re: denial of a chassis choice request to use NACPC chassis	8/28/2019	HMM0003342	HMM0003344	CONFIDENTIAL-OCEO	CX00004273	CX00004275
Email chain, top email from Dan Compton to Kim Salerno, Tina Shin, Holly Ratliff, and Shenika Alford re: Travelpro Products - NACPC - Savannah, GA (Chassis)	1/11/2018	HMM0003354	HMM0003363	CONFIDENTIAL-OCEO	CX00004276	CX00004285
Canadian National Confidential Transportation Agreement No. 575164 AA with Lotte Global logistics	8/1/2021	HMM0003384	HMM0003394	CONFIDENTIAL-OCEO	CX00004286	CX00004296
Canadian Pacific Railway Confidential Contract #36693 with HMM	2/4/2020	HMM0003430	HMM0003430	CONFIDENTIAL-OCEO	CX00004297	CX00004314
Union Pacific Railroad Company Exempt Rail Transportation Agreement with HMM	8/01/2020	HMM0003448	HMM0003461	CONFIDENTIAL-OCEO	CX00004315	CX00004328
Amendment No. 4 to Chassis Use Agreement between Direct ChassisLink and HMM	8/11/2017	HMM0003635	HMM0003644	CONFIDENTIAL-OCEO	CX00004329	CX00004338
Email from CHungsik Jeong to Aime Cuypers re: Review on DCLI's Revised Offer	5/4/2016	HMM0004451	HMM0004461	CONFIDENTIAL-OCEO	CX00004339	CX00004349
Email from Frank Knafelz to Sukwoo re: HMM & DCLI discussion to save cost for both	11/25/2015	HMM0005477	HMM0005485	CONFIDENTIAL-OCEO	CX00004350	CX00004369
TRAC Intermodal revised proposal to provide daily rental chassis to HMM on a national basis; Email from Dick Ong to Aime Cuypers re: Daily chassis rate Carrier Haulage	2/5/2015; 2/3/2016	HMM0005659; HMM0007629	HMM0005663; HMM0007635	CONFIDENTIAL-OCEO	CX00004370	CX00004381
Chassis Purchase Agreement between Direct ChassisLink and HMM; Chassis Use Agreement between Direct ChassisLink and HMM	6/19/2013	HMM0005734; HMM0007715	HMM0005767; HMM0007727	CONFIDENTIAL-OCEO	CX00004382	CX00004428
Chassis Use Agreement between DCLI, TRAC Chassis Pool Management, and Flexi-Van Leasing implementing the Pool of Pools in LA/LB	5/1/2015	IEPS_0000001	IEPS_0000030	CONFIDENTIAL	CX00004429	CX00004458
Intermodal Cartage Chassis Reports (Intermodal Cartage_Chassis Usage 2020.csv)	2020	Intermodal Cartage_00000018	Intermodal Cartage_00000018	CONFIDENTIAL-OCEO	CX00004459	CX00004459
Email chain, top email from Tony Micena to Will Douglas re: COCP / MWCP chassis providers	10/5/2018	Intermodal Cartage_00524398	Intermodal Cartage_00524399	CONFIDENTIAL	CX00004460	CX00004462
Intermodal Cartage Chassis Reports (Intermodal Cartage_Chassis Usage 2017.csv - Intermodal Cartage_Chassis Usage 2019.csv)	2017-2019	Intermodal Cartage_00707805	Intermodal Cartage_00707807	CONFIDENTIAL-OCEO	CX00004463	CX00004465

Exhibit A

Chassis Purchase Agreement between Direct ChassisLink and MSI	3/26/2015	MSC0000056	MSC0000135	CONFIDENTIAL-OCEO	CX00004466	CX00004545
Email from Bill Shea to Robert Milazzo re: CCM Railroad Tactics	9/18/2019	MSC0001441	MSC0001443	CONFIDENTIAL-OCEO	CX00004546	CX00004548
Email chain, top email from Ion Burnic to Antonino Castellano forwarding the letter to ocean carriers	5/24/2017	MSC0005862	MSC0005863	CONFIDENTIAL-OCEO	CX00004549	CX00004550
Chassis Use Agreement between Direct ChassisLink and MSI	3/26/2015	MSC0006510	MSC0006536	CONFIDENTIAL-OCEO	CX00004551	CX00004577
Email from Bill Shea to Vincenzo Roveccio re: Request from Schneider National regarding NACPC/CCM	9/5/2017	MSC0011518	MSC0011520	CONFIDENTIAL-OCEO	CX00004578	CX00004580
Amendment ONE to CSXT Intermodal International Agreement with MSC	03/2020	MSC0024887	MSC0024887		CX00004581	CX00004596
Amendment No. 1 to BNSF Intermodal Transportation Contract Agreement MA105 with MSC	5/1/2020	MSC0024902	MSC0024902		CX00004597	CX00004599
Canadian National Railway Company Confidential Transportation Agreement 012808-BZ with MCS	11/15/2020	MSC0024904	MSC0024904		CX00004600	CX00004609
Maersk presentation excerpt, "History of the ML/DCLI relationship and changes made along the way"	6/3/2019	MSK0000001	MSK0000003	CONFIDENTIAL-OCEO	CX00004610	CX00004612
Chassis Use Agreement between Direct ChassisLink and Maersk Agency USA	1/1/2015	MSK0000013	MSK0000043	CONFIDENTIAL-OCEO	CX00004613	CX00004643
Amendment No. 1 to Chassis Use Agreement between Direct ChassisLink and Maersk Agency USA	3/14/2018	MSK0000052	MSK0000059	CONFIDENTIAL-OCEO	CX00004644	CX00004651
Equipment User Agreement between TRAC Intermodal and Maersk Agency USA	7/1/2018	MSK0000063	MSK0000083	CONFIDENTIAL-OCEO	CX00004652	CX00004672
Email exchange from Nicole Yarbrough to Erin Brenner, Hans Christian Aagaard, Jonathan Sinton, and Towns Agnew re: notes from DCLI meeting	10/29/2020	MSK0000962	MSK0000967	CONFIDENTIAL-OCEO	CX00004673	CX00004678
Equipment User Agreement between TRAC Intermodal and Maersk Agency USA	7/1/2017	MSK0001728	MSK0001747	CONFIDENTIAL-OCEO	CX00004679	CX00004698
Email chain top email from Matthew Adamec Robert to Thomas Weisberg and Nikolaj Jacob Jessen-Klixbull re: Hamburg Sud chassis provider - SACP	11/1/2018	MSK0004700	MSK0004703	CONFIDENTIAL-OCEO	CX00004699	CX00004702
Email chain top email Gregg Blanchfield to Thomas Weisberg re: Atlanta Recycling Company - chassis use - MH switch	2/27/2018	MSK0008949	MSK0008950	CONFIDENTIAL-OCEO	CX00004703	CX00004704
Email from Thomas Weisberg to Michelle Fowler with attachment Chassis_Guideline; Chassis_Guideline_provider_visual Re: Chassis guideline and visual	2/19/2018	MSK0010599	MSK0010602	CONFIDENTIAL-OCEO	CX00004705	CX00004708
Email from Matthew Robert Adamec to Thomas Weisberg re: CCM IEP response	8/23/2017	MSK0010646	MSK0010646	CONFIDENTIAL-OCEO	CX00004709	CX00004709
Email chain top email from Matthew Adamec to Scott Bilheimer and Thomas Weisberg re: approval letter	8/9/2017	MSK0010671	MSK0010675	CONFIDENTIAL-OCEO	CX00004710	CX00004714
Email chain top email from Thomas Weisberg to Mike Wilson, Alyssa Tomcheck, and Ken Tock re: Hamburg Sud chassis provider - SACP	11/14/2018	MSK0011648	MSK0011652	CONFIDENTIAL-OCEO	CX00004715	CX00004719

Exhibit A

Email chain top email from Gregg Blanchfield to Matthew Adamec, Robert Watson, Ron Joseph, and Brian Swanner re: usage assignment in CCM Pools Maersk	10/5/2016	MSK0016489	MSK0016490	CONFIDENTIAL-OCEO	CX00004720	CX00004721
Canadian National Railway Company Confidential Transportation Master Agreement No. 572970-AA with MSC	01/3/2021	MSK0016977	MSK0017019	CONFIDENTIAL-OCEO	CX00004722	CX00004764
BNSF Railway Company Intermodal Transportation Contract Agreement MA-80 Amendment No. 4 with Maersk	11/30/2015	MSK0017225	MSK0017235	CONFIDENTIAL-OCEO	CX00004765	CX00004775
CSX Amendment No. 2 to Agreement for Rail Transport Services with Maersk	3/18/2013	MSK0017253	MSK0017253	CONFIDENTIAL-OCEO	CX00004776	CX00004863
CCM Chassis Provider Matrix for Wan Hai	1/19/2022	N/A	N/A		CX00004864	CX00004871
Minutes of the OCEMA Senior Steering Committee	3/26/2020	OCE0000971	OCE0000976	CONFIDENTIAL-OCEO	CX00004872	CX00004877
Minutes of the OCEMA Senior Steering Committee	5/9/2019	OCE0001110	OCE0001114	CONFIDENTIAL-OCEO	CX00004878	CX00004882
OCEMA Senior Steering Committee Meeting presentation	3/26/2020	OCE0001392	OCE0001427	CONFIDENTIAL-OCEO	CX00004883	CX00004918
OCEMA letters from Jeffrey Lawrence to Tim Haas, Tom Weisberg, Robert Milazzo, Gil Lehmann, and Dan Compton re: a gray pool model in Memphis	6/7/2019	OCE0001795	OCE0001800	CONFIDENTIAL	CX00004919	CX00004935
CCE Board Meeting Presentation	1/23/2018	OCE0003459	OCE0003532	CONFIDENTIAL-OCEO	CX00004936	CX00005009
CCE Board Meeting Presentation	10/23/2018	OCE0006021	OCE0006075	CONFIDENTIAL-OCEO	CX00005010	CX00005064
Email from Stacey Normington to OCEMA SSC re: OCEMA SSC Meeting Presentation	5/9/2019	OCE0006989	OCE0007041	CONFIDENTIAL-OCEO	CX00005065	CX00005117
Email from Josh Stein to Mike Wilson and CCE Board Members attaching February 19, 2020 board minutes	3/13/2020	OCE0007563	OCE0007569	CONFIDENTIAL	CX00005118	CX00005200
Minutes of the OCEMA Senior Steering Committee Meeting	9/11/2013	OCE0008845	OCE0008850	CONFIDENTIAL	CX00005201	CX00005206
Agenda for the Management Coordinating Committee callback	2/27/2013	OCE0015457	OCE0015489		CX00005207	CX00005238
OCEMA Senior Steering Committee presentation	3/26/2020	OCE0017688	OCE0017723	CONFIDENTIAL-OCEO	CX00005239	CX00005274
Minutes of the OCEMA Senior Steering Committee Meeting	12/5/2012	OCE0020205	OCE0020276	CONFIDENTIAL	CX00005275	CX00005342
OCEMA Senior Steering Committee meeting presentation	10/28/2020	OCE0028397	OCE0028401	CONFIDENTIAL-OCEO	CX00005343	CX00005366
Email Ken Tock to Mike Wilson re: Savannah - Use of Truckers Wheels	2/12/2021	OCE0031930	OCE0031932	CONFIDENTIAL-OCEO	CX00005367	CX00005369
Chassis Use Agreement between NACPC and Ocean Network Express (North America) INC	2/28/2018	ONE0000001	ONE0000009	CONFIDENTIAL-OCEO	CX00005370	CX00005378
Amendment to Chassis Use Agreement dated February 28, 2018 between NACPC and Ocean Network Express (North America) INC	4/23/2020	ONE0000010	ONE0000012	CONFIDENTIAL-OCEO	CX00005379	CX00005381
Multiple Chassis Pool User Agreement between Flexivan and Ocean Network Express (North America) INC	6/1/2020	ONE0000036	ONE0000049	CONFIDENTIAL-OCEO	CX00005382	CX00005395
Amendment to Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	6/1/2020	ONE0000050	ONE0000059	CONFIDENTIAL-OCEO	CX00005396	CX00005405
Flexi-Van Bid Proposal ONE national chassis RFP	12/20/2017	ONE0000148	ONE0000155	CONFIDENTIAL-OCEO	CX00005406	CX00005413
Binding Letter of Intent between Flexi-Van and ONE re: ONE National Chassis RFP	2/13/2018	ONE0000201	ONE0000202	CONFIDENTIAL-OCEO	CX00005414	CX00005415
Letter of Authority For Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals	9/11/2018	ONE0000234	ONE0000235	CONFIDENTIAL	CX00005416	CX00005417

Exhibit A

Email from Christina Beitz to Ronnie Armstrong re: SSCP Transition Call -- CONFIDENTIAL	10/8/2018	ONE0000472	ONE0000475	CONFIDENTIAL-OCEO	CX00005418	CX00005421
Email chain, top email from Ronnie Armstrong to JK Park re: ONE SACP & MWCP rate options	2/19/2019	ONE0001525	ONE0001531	CONFIDENTIAL-OCEO	CX00005422	CX00005428
General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and Ocean Network Express PTE LTD	3/1/2018	ONE0005905	ONE0005915	CONFIDENTIAL-OCEO	CX00005429	CX00005439
Binding Letter of Intent between Flexi-Van and ONE re: ONE Nationa Chassis RFP	2/1/2018	ONE0007891	ONE0007895	CONFIDENTIAL-OCEO	CX00005440	CX00005444
Email chain, top email from Ronnie Armstrong (ONE) to Takashi Hayakawa (ONE), Dave Daly, Jeffrey Kabella, and Dermot Johnston re: the Flexi-Van incentive	8/22/2019	ONE0012179	ONE0012183	CONFIDENTIAL-OCEO	CX00005445	CX00005449
Amendment to Equipment User Agreement between TRAC Intermoda and Ocean Network Express (North America) INC	6/1/2020	ONE0015043	ONE0015052	CONFIDENTIAL-OCEO	CX00005450	CX00005459
Amendment to the General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	6/1/2020	ONE0015053	ONE0015054	CONFIDENTIAL-OCEO	CX00005460	CX00005461
Amendment to Equipment User Agreement between TRAC Intermoda and Ocean Network Express (North America) INC	3/1/2018	ONE0015055	ONE0015056	CONFIDENTIAL-OCEO	CX00005462	CX00005463
Amendment to the General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	3/1/2018	ONE0015057	ONE0015058	CONFIDENTIAL-OCEO	CX00005464	CX00005465
Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	3/1/2018	ONE0015072	ONE0015083	CONFIDENTIAL-OCEO	CX00005466	CX00005477
Email exchange between Jeff Kabella to Lloyd Ethridge re: Ocean Network Express (North America) Inc.,	4/22/2020	ONE0018322	ONE0018323	CONFIDENTIAL-OCEO	CX00005478	CX00005479
Email chain, top email from Jeff Kabella to Lloyd Ethridge re: Ocean Network Express (North America) Inc.	4/16/2020	ONE0018333	ONE0018334	CONFIDENTIAL-OCEO	CX00005480	CX00005481
Email chain, top email from Jeff Kabella to Steve Smith re: NACPC Chassis	12/17/2019	ONE0018569	ONE0018579	CONFIDENTIAL-OCEO	CX00005482	CX00005492
Email chain, top email from Jeff Kabella to Shinya Takada re: Agreement request for DCLI chassis	10/16/2019	ONE0018732	ONE0018733	CONFIDENTIAL-OCEO	CX00005493	CX00005494
Email chain, top email from Christina Beitz to Jeffrey Kabella re: chassis provider request	2/8/2019	ONE0019239	ONE0019243	CONFIDENTIAL-OCEO	CX00005495	CX00005499
Email chain, top email from Jeff Kabella to Christina Beitz re: Use of DCLI Chassis & Direct billing	1/24/2020	ONE0020503	ONE0020505	CONFIDENTIAL-OCEO	CX00005500	CX00005502
BNSF Contract MA107 International Internal Transportation Contract with ONE	7/31/2022	ONE0023389	ONE0023396	CONFIDENTIAL-OCEO	CX00005503	CX00005510
Canadian National Railway Company Confidential Transportation Master Agreement No. 561828-AA with ONE	9/1/2019	ONE0023397	ONE0023418	CONFIDENTIAL-OCEO	CX00005511	CX00005532
Amendment One to the CSXT Intermodal International Agreement with ONE	8/1/2020	ONE0023454	ONE0023461	CONFIDENTIAL-OCEO	CX00005533	CX00005540
Norfolk Southern Railway Company Intermodal Transportation Agreement with ONE	2/2/2019	ONE0023470	ONE0023491	CONFIDENTIAL-OCEO	CX00005541	CX00005562

Exhibit A

Norfolk Southern Railway Company Amendment #1 to Intermodal Transportation Agreement with ONE	6/1/2020	ONE0023492	ONE0023494	CONFIDENTIAL-OCEO	CX00005563	CX00005565
summary of the chassis drays that we have done in the Memphis market versus the Savannah market for the time period of January of 2021 through August of 2021	2021	TCW_00045529	TCW_00045529	CONFIDENTIAL-OCEO	CX00005566	CX00005614
Email chain between Paul Yang and Mary O'Neil Harding from Trac Intermodal re: 2015 CSR report and the supplier social responsibility commitment	6/2/2017	WHL0000085	WHL0000240	CONFIDENTIAL-OCEO	CX00005615	CX00005770
Amendment to Equipment User Agreement between TRAC Intermodal and Wan Hai Lines LTD	7/1/2021	WHL0001327	WHL0001332	CONFIDENTIAL-OCEO	CX00005771	CX00005776
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Wan Hai Lines LTD	2/1/2016	WHL0001333	WHL0001344	CONFIDENTIAL-OCEO	CX00005777	CX00005788
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Wan Hai Lines LTD	4/1/2020	WHL0001345	WHL0001358	CONFIDENTIAL-OCEO	CX00005789	CX00005802
Amendment to the Equipment User Agreement between TRAC Intermodal and Wan Hai Lines LTD	2/1/2017	WHL0001361	WHL0001365	CONFIDENTIAL-OCEO	CX00005803	CX00005807
Email from Tony Micena to Mary O'Neil Harding re: YML Revised Conversion proposal from the COCP to the TMEP and the revised YML Genset/Chassis proposal	3/1/2019	YML0000037	YML0000060	CONFIDENTIAL-OCEO	CX00005808	CX00005831
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Yang Ming Marine Transport Corp.	1/1/2020	YML0000334	YML0000355	CONFIDENTIAL-OCEO	CX00005832	CX00005853
Email chain, top email from Tony Micena to Norman Choi re: IMCC Complaint	3/25/2021	YML0000369	YML0000373	CONFIDENTIAL-OCEO	CX00005854	CX00005858
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Yang Ming Marine Transport Corp.	1/1/2017	YML0002219	YML0002246	CONFIDENTIAL-OCEO	CX00005859	CX00005886
Email chain, top email from Tony Micena to Emily Dunn and Nicole Hassell re: Chassis preferred choice	5/7/2019	YML0002342	YML0002346	CONFIDENTIAL-OCEO	CX00005887	CX00005891
Email exchange between Austin Chen and Mary O'Neill Harding re: American Global Logistics - SACP, NACPC designation YML	6/20/2016	YML0002413	YML0002413	CONFIDENTIAL-OCEO	CX00005892	CX00005892
Email from Tony Micena to Martin Huang re: chassis contract negotiation progress	10/22/2019	YML0003322	YML0003329	CONFIDENTIAL-OCEO	CX00005893	CX00005900
Email from Betty Yang to Tony Micena re: chassis contract negotiation progress TPSP	4/21/2020	YML0003478	YML0003490	CONFIDENTIAL-OCEO	CX00005901	CX00005913
Email chain, top email from Tony Micena to Betty Yang re: Yang Ming COCP to TMEP conversion	5/1/2019	YML0003772	YML0003777	CONFIDENTIAL-OCEO	CX00005914	CX00005919
E-mail chain, top email from Ken Tock to Austin Chen re: YM update on CCM choice model	6/27/2017	YML0004171	YML0004172	CONFIDENTIAL	CX00005920	CX00005921
Email from Austin Chen to Martin Huang re: YML Proposed rate for Metro and Contractual Increases for Chicago and LA/LBCH	6/1/2015	YML0005053	YML0005065	CONFIDENTIAL-OCEO	CX00005922	CX00005934
Amendment to Equipment User Agreement between TRAC Intermodal and Yang Ming (America)	4/15/2019	YML0005628	YML0005632	CONFIDENTIAL-OCEO	CX00005935	CX00005939
Amendment to Equipment User Agreement between TRAC Intermodal and Yang Ming (America)	1/1/2019	YML0006052	YML0006055	CONFIDENTIAL-OCEO	CX00005940	CX00005943

Exhibit A

BNSF Railway Company Amendment No. 4 to International Transportation Agreement MA40 with Yang Ming	7/1/2018	YML0006106	YML0006119	CONFIDENTIAL-OCEO	CX00005944	CX00005957
2019 Canadian Pacific Railway Company Confidential Contract #503894 with Yang Ming	5/30/2019	YML0006179	YML0006201	CONFIDENTIAL-OCEO	CX00005958	CX00005980
Union Pacific Railroad Company First Amendment to Exempt Rail Transportation Agreement with Yang Ming	1/1/2014	YML0006227	YML0006232	CONFIDENTIAL-OCEO	CX00005981	CX00005986
Equipment User Agreement for LABP Chassis Pool Chassis between TRAC Intermodal and Yang Ming (America)	5/1/2014	YML0006411	YML0006423	CONFIDENTIAL-OCEO	CX00005987	CX00005999
Equipment User Agreement for MCCP Chassis Pool Chassis between TRAC Intermodal and Yang Ming (America) Corporation	10/1/2013	YML0006446	YML0006458	CONFIDENTIAL-OCEO	CX00006000	CX00006012
Amended and Restated Equipment User Agreement for COCP Chassis Pool Chassis between TRAC Intermodal and Yang Ming (America)	5/1/2014	YML0006459	YML0006472	CONFIDENTIAL-OCEO	CX00006013	CX00006026
Equipment User Agreement for MCCP Chassis Pool between Trac Intermodal and Yang Ming	10/1/2013	YML0006473	YML0006485	CONFIDENTIAL-OCEO	CX00006027	CX00006039
Equipment User Agreement between TRAC Intermodal and ZIM Integrated Shipping	3/1/2016	ZIM0000001	ZIM0000060	CONFIDENTIAL-OCEO	CX00006040	CX00006099
Amendment to Equipment User Agreement between TRAC Intermodal and ZIM Integrated Shipping Services	9/1/2017	ZIM0000061	ZIM0000085	CONFIDENTIAL-OCEO	CX00006100	CX00006124
Email from Bart Spangler to Ayal Anat and Marcus Michael attaching chassis provider overview presentation	10/27/2015	ZIM0011233	ZIM0011243	CONFIDENTIAL-OCEO	CX00006125	CX00006135
Second Amendment to the Canadian National Railway Company Confidential Transportation Agreement No. 016223-AY with ZIM	2/11/2016	ZIM0013050	ZIM0013056	CONFIDENTIAL-OCEO	CX00006136	CX00006142
Evergreen per diem invoice to IMC Companies	4/1/2020	N/A	N/A	CONFIDENTIAL-OCEO	CX00006143	CX00006144
"Choie package data.xlsx" spreadsheet	2018-2021	N/A	N/A	CONFIDENTIAL	CX00006145	CX00006145
Chassi Splits.xlsx spreadsheet with chassis splits per year from 2017-2021	2017-2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006146	CX00006146
Memphis Supply Chain Innovation Team White Paper	2019	N/A	N/A		CX00006147	CX00006150
APL Highlights Significant Contributions to Containerization, SEAPORTS PRESS REVIEW (Apr. 6, 2006), https://web.archive.org/web/20061229100504/http://www.seaportspr.com/viewtechnews.cgi?newsletter_id=49&article_id=2200	4/6/2006	N/A	N/A		CX00006151	CX00006152
Deposition Transcript of Dan Compton, HMM 143(b)(6) [Excerpt]	11/17/2021	N/A	N/A	CONFIDENTIAL	CX00006153	CX00006155
Stipulations Concerning Respondent Yang Ming Marine Transport Corp.	2/22/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006156	CX00006162

CERTIFICATE OF SERVICE

I certify that, on April 29, 2022, a true and current copy of the foregoing Motion for Confidential Treatment and the attachments thereto were filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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